

of Accounts and Military Tribunals. In particular, this law regulates the compensation of damages to the injured party who has been deprived of his personal freedom following the denial of justice or as a result of wilful misconduct or gross negligence. The injured party can request compensation of damages from the State, which will in turn claim compensation from the judge responsible for the wrongdoing up to a maximum of half his yearly salary at the time the proceeding opened. There is, however, no limit in the case of wilful misconduct.

Legislative decree n. 109/2006 sets the discipline of disciplinary liability. Art. 1 thereof lists — with a quite broad wording — the duties of the judge, who is required to carry out his functions with “impartiality, correctness, diligence, industriousness, confidentiality and balance and [to] respect the dignity of the person in the exercise of functions”: breach of these duties, provided that it results in an unjust advantage or an unjust harm for either party to the proceedings, constitutes a disciplinary offence under art. 2; furthermore, art. 2 mentions specific conducts which may constitute disciplinary offences (e.g., the failure of the judge to abstain himself when he is so required by law, or the undue interference with the activity of another magistrate). Moreover, under art. 3, judges may be found responsible for specific conducts, deemed to harm the prestige of the Judiciary, held while not exercising Judiciary functions (e.g., using the capacity of magistrate in order to obtain unjust advantages or for others, or assuming extra-judicial posts without the previous authorization of the Superior Council of the Judiciary). Under art. 4, finally, some criminal offences, once they have been ascertained by a definitive judicial decision, give rise to disciplinary liability.

When a judge has failed to comply with his duties of office, he is brought before the Superior Council of the Judiciary. If misconduct is ascertained, then disciplinary action will be taken that may consist in 1) the removal of the judge from the Judiciary, 2) his suspension from office from three months to two years, 3) a decreased or frozen salary, 4) a transfer, or 5) in less serious cases, a simple reprimand.

The Superior Council of the Judiciary, through the Minister of Justice or the Advocate General of the Court of Cassation, has the right to commence the disciplinary proceedings. The decision is taken first by the disciplinary section of the Superior Council of the Judiciary and then by a plenary session of the whole Council. As already mentioned, an appeal may be lodged with the Combined Sections of the Court of Cassation against these disciplinary decisions.

CHAPTER TEN

CONSTITUTIONAL JUSTICE

by *Justin Orlando Frosini*

SUMMARY: 1. Terminological Premise. — 2. Models of Constitutional Review. — 2.1. The Genesis of Judicial Review: Dr Bonham's Case. — 2.2. The US Model of Constitutional Review. — 2.3. The Austrian Model of Constitutional Review. — 3. Structure, Composition and Appointment of Constitutional or Supreme Courts. — 4. The Salient Features of Constitutional Review. — 4.1. What Constitutional Body carries out Constitutional review? — 4.2. When is Review carried out? — 4.3. How can a Constitutional Petition be lodged with a Constitutional or Supreme Court? — 4.4. What Types of Decision can be taken? — 4.5. What Effects do the Decisions of Constitutional or Supreme Courts have? — 4.6. Other Functions of Constitutional or Supreme Courts. — 5. Composition, Functioning and Jurisdiction of the Italian Constitutional Court. — 6. Constitutional Review in Italy. — 6.1. Justiciable Acts. — 6.2. The Parameter of judgment. — 6.3. The Proceedings. — 6.3.1. The Incidental Proceedings. — 6.3.2. The Principaliter Proceedings. — 6.3.3. A Third Proceeding? Constitutional Review of the Statutes of the Ordinary Regions. — 6.4. Types of Decision. — 6.4.1. Decisions of Inadmissibility. — 6.4.2. Judgments of Acceptance and Dismissal. — 6.4.3. Interpretative Judgments. — 6.4.4. Manipulative Judgments. — 6.4.4.1. Judgments of Partial Acceptance. — 6.4.4.2. Substitutive Judgments. — 6.4.4.3. Additive Judgments. — 6.4.5. Exhortative Judgments. — 7. The Other functions of the Italian Constitutional Court. — 7.1. Resolution of Jurisdictional disputes. — 7.1.1. Resolution of jurisdictional disputes between branches of government. — 7.1.2. Resolution of jurisdictional disputes between the State and the regions. — 7.2. Impeachment of the President of the Republic. — 7.3. Judgment of Admissibility of Abrogative Referendums.

1. Terminological Premise

This chapter will be divided into two parts. The first will deal with Constitutional and Supreme Courts in a comparative perspective looking at the main models of constitutional review and the way judges are selected. In particular, with regard to constitutional review, we will examine: 1) what constitutional body actually carries out constitutional review; 2) when review is carried out; 3) how a constitutional petition can be lodged with a Constitutional or Supreme Court; 4) the types of decision that can be taken; 5) what effects these decisions have. Finally, we will look at the other

functions that can be assigned to Constitutional or Supreme Courts. The second part will then address the same topics looking specifically at the role of the Italian Constitutional Court. Please note that for a more exhaustive description of the case law of the Italian Constitutional Court one should refer to Chapter 14.

Before we begin, however, we need to define some of the expressions, which are normally employed when dealing with Constitutional or Supreme Courts, i.e. "constitutional justice", "constitutional adjudication", and "constitutional review". The term constitutional justice can be seen as a general term used to define all the functions that are carried out by a Constitutional or Supreme Court (but also by lower courts, depending on the model that is adopted) in ensuring pursuance of the Constitution and protection of fundamental and basic rights. In many respects, the expression "constitutional adjudication" has a similar meaning, while the expression "constitutional review" has a more restricted meaning. The latter is in fact related to one specific function that can be exercised by a Constitutional or Supreme Court, i.e. comparing the Constitution (rigid and codified) with a source of law which is subordinate to the Constitution and — in case of contrast — declaring it unconstitutional. In the United States this would be defined as "judicial review", while in the United Kingdom judicial review is considered the review of administrative action. More precisely, in the United States one has "judicial review of legislation" (or, if one prefers, "judicial review of constitutionality"), while in the United Kingdom one has "judicial review of administrative action". To avoid confusion, in recent years, many comparative scholars prefer the term "constitutional review" when referring to judicial review of constitutionality, and this is the term that will be used in this chapter.

Finally, one must ask the question: why does a legal system need a Constitutional or Supreme Court? By simplifying to a maximum, one can give three answers to this question: first, to ensure legal certainty and equality; second, to ensure the rule of law; third, to resolve conflicts between central and decentralised government (if one is in the context of a federal or devolved system of government).

2. Models of Constitutional Review

In a comparative perspective, one should note the fact that countries having a rigid and codified constitution do not all adopt the same system of review. Conventionally, comparative scholars make two distinctions with regard to models of constitutional review: first, they distinguish between

political and judicial review, and then they distinguish between decentralised (diffused) or centralised (concentrated) review. While the first distinction still exists today (although some authors argue that political review is not really an example of constitutional review at all), the dichotomy between decentralised and centralised constitutional review is no longer an adequate way to classify all the systems of constitutional review that now exist around the world. As we will see in more detail in the following paragraphs, some writers even consider Italy's system of constitutional review as being a so-called *tertium genus*, i.e. a system that belongs neither to the decentralised nor to the centralised model of constitutional review.

2.1. The Genesis of Judicial Review: Dr Bonham's Case

To fully understand the models of constitutional review one has to look at their historical evolution. Although certain studies show that a form of judicial review existed in some Scandinavian countries as far back as the 13th century, most commentators consider the famous Dr Bonham's case of 1610 as a precursor of judicial review of legislation. This may appear to be a paradox given the fact that Great Britain did not (*rectius* does not) have a rigid, codified constitution, but this case is undoubtedly part of the constitutional heritage of the United States Supreme Court, as we will see in par. 2.2.

Very briefly, the case concerned a physician, Dr Bonham, who was accused of illegally practicing medicine and subsequently punished with a fine and imprisonment by the Royal College of Physicians. Bonham took the case to the Court of Common Pleas, presided by the esteemed judge and jurist Lord Edward Coke, suing for false imprisonment. In its defence the College referred to its statute of incorporation, underlining the fact that the latter authorised it to regulate all physicians and, when necessary, punish them with a fine or imprisonment. However, the statute in question also provided that one half of the fines should go to the College itself, and, according to Coke, this made the College not only judge, but also party, to the case. To put this in simpler terms, the College had applied the statute in the correct manner, but the statute itself was unreasonable. This led Lord Coke to make a famous statement: "[It] appears in our books that in many cases the common law will controul acts of Parliament and sometimes adjudge them to be utterly void; for when an act of Parliament is against common right or reason, or repugnant or impossible to be performed, the common law will controul it and adjudge such act to be void". What Chief Justice Coke affirmed in this decision was the supremacy of the common law and, as a result, the fact that the prerogatives of Parliament were derived

from and circumscribed by precedent. It is common knowledge that this principle did not prevail in the British legal system where the Sovereignty/Supremacy of Parliament later became one of the pillars of the British Constitution. As an after note, it is worth remembering that two years earlier Edward Coke had provoked the wrath of King James I by again arguing in favour of the common law and the fact that only Courts of Justice — and not the King — could adjudge cases. Coke did this by recalling the words of the great English jurist of the 13th century Henry of Bracton: *Quod Rex non debet esse sub homine sed sub Deo et lege* [the King should not be under man, but under God and law].

2.2. *The US Model of Constitutional Review*

The words of Edward Coke in *Dr Bonham* are echoed in the famous *Marbury v. Madison* case delivered by the United States Supreme Court in 1803, presided by Chief Justice John Marshall. The case was politically explosive because it involved John Marshall himself and a decision taken by President Adams, under whom he had served as Secretary of State. Two days before his term ended, Adams had appointed a series of circuit judges and justices of the peace. One of these appointees, infamously called the “Midnight Judges”, was William Marbury. Following approval by the Senate, the commissions had to be delivered to all those who had been appointed, however, it proved impossible to deliver them all before Adams ended his term in office. As soon as Thomas Jefferson, the new President, was sworn in, he gave the order that the remaining commissions should not be delivered. Without the commissions, the appointees were unable to assume the offices and duties to which they had been appointed. Marbury and two other appointees went to the Supreme Court, and, on the basis of par. 13 of the Judiciary Act of 1789, they filed a writ of mandamus, i.e. they asked the Supreme Court to order the new Secretary of State to deliver their commissions and allow them to take office as judges. In brief, the Supreme Court concluded that the applicants did have a vested right and that the appointment was not revocable. Having come to this conclusion, based on the above-mentioned Judiciary Act, the Court should have issued the mandamus; instead, it held that the provision of the Judiciary Act 1789 that gave the Supreme Court the power to issue writs of mandamus violated Art. 3 of the Constitution, which regulates the judicial power of the United States. From a political standpoint this allowed the Chief Justice, John Marshall, to avoid delivering a decision against the President and Secretary of State in office and in favour of the previous Administration he had been part of. From a constitutional standpoint, for the first time, the Court explicitly clarified the

fact that it has the power to carry out judicial review of legislation. These are the words pronounced by John Marshall: “...in declaring in what shall be the supreme law of the land, the Constitution itself is first mentioned; and not the laws of the United States generally but those only which shall be made in pursuance of the Constitution have that rank. The particular phraseology of the Constitution of the United States confirms and strengthens the principle, supposed to be essential to all written constitutions that a law repugnant to the constitution is void”. While Coke had affirmed that any act *repugnant* to the *common law* would be void, Marshall talks of any law *repugnant* to the *Constitution*. In *Marbury v. Madison* the parameter for review is, of course, the US Constitution. What are the salient features that emerge from this landmark decision and that are at the basis of what is often defined as the American model of constitutional review?

First of all, review is *a posteriori* (or repressive), i.e. the law is reviewed after it has come into force.

Second, constitutional review is anchored to an actual controversy among real adversaries. In other words, judicial review takes place during regular court proceedings, therefore review is concrete and incidental (one must remember that *Marbury* did not go to the Supreme Court because he wanted judicial review of the Judiciary Act 1789, on the contrary, he wanted the Supreme Court to resolve his controversy with the Secretary of State John Madison). Finally, review is carried out by all ordinary courts and not just the Supreme Court, therefore review is decentralised (or diffused).

To summarise: in the US model constitutional review is *a posteriori*, concrete, incidental and decentralised.

2.3. *The Austrian Model of Constitutional Review*

The other main model of constitutional review is the so-called Austrian Model, first introduced with the Austrian Constitution of 1920, based on a heuristic model devised by the great Prague-born jurist and philosopher Hans Kelsen. Some authors variably refer to it as the kelsenian, European, centralised or concentrated model of constitutional review. This is a model whereunder constitutional review is carried out by an *ad hoc* Constitutional Court, with exclusive jurisdiction over constitutional rulings. Review is abstract because it is not linked to an actual controversy but is the result of a so-called special or *principaliter* proceeding. Often, in countries that have a centralised system of constitutional review, there is both a Constitutional Court and a Supreme Court. While the latter sits at the top of the judiciary system, the former sits outside it.

Kelsen's ideas were based on his famous *Stufenbau*, i.e. a hierarchical structure of the legal system on the basis of which the Constitution was to be considered the "law of laws". In this sense there is a similarity with John Marshall's idea of the Constitution being the supreme law of the land. In both cases the legal system is based on a hierarchy of legal sources. Where Kelsen's ideas differ from the US model of constitutional review is in the fact that the guardian should be a "Court-like" body that is not, however, part of the judiciary system. Moreover, Kelsen points out that review should not be *a priori* (preventative) but *a posteriori* (repressive), which in practice is another similarity between the two models. In other words, review should be carried out after the law has come into effect, and not beforehand. If a law is in contrast with the Constitution, the Constitutional Court should strike it down. In the original Austrian model (i.e. the system that existed before the constitutional amendments of 1929 and 1975), complaints could only be lodged by constitutional bodies (i.e. institutions of the State).

Again, to summarise, in the Austrian model constitutional review is *a posteriori*, the result of so-called *principaliter* proceedings, abstract and centralised.

3. Structure, Composition and Appointment of Constitutional or Supreme Courts

The number of judges sitting on Constitutional and Supreme Courts and the way they are appointed differs significantly from country to country. Their term in office also varies. For example, there are nine judges sitting on the US Supreme Court, who serve for life, although they are subject to impeachment. In the case of the Canadian Supreme Court and the Australian High Court there are respectively nine and seven judges and there is mandatory retirement at the ages of 75 and 70. In other countries judges serve for a limited term and may or may not be re-elected. For example, the sixteen judges sitting on the German Federal Constitutional Court (*Bundesverfassungsgericht*) have a term of twelve years that cannot be renewed. Moreover, they must retire at the age of 68.

The renewal of Constitutional Courts and the frequency of appointment of constitutional judges do not always coincide. In fact, in some countries such as Spain and, as we will see in par. 5, Italy, the term of office of constitutional judges expires successively, which results in partial renewal of the Constitutional Court.

The influence of the executive power on the appointment or election of judges to Constitutional/Supreme Courts also differs from case to case. In

some countries (for example Japan and Sweden), judges are appointed exclusively by the government. This system is sometimes defined as an Appointment-based System.

In other countries, Parliament exercises a much greater influence in the selection of constitutional judges, especially with respect to regular court judges. In countries such as Germany, Belgium, and Poland, for example, constitutional judges are appointed exclusively by the legislative body. This is what would be called an Election-based System. In other cases, we have courts with some judges that are appointed (by the executive or by the head of state) and some that are elected (by Parliament or by senior judges). This is often referred to as a Mixed System.

Finally, in countries where constitutional review is carried out by a Supreme Court or a High Court that is at the top of the judiciary system, the composition may be predetermined and neither Parliament nor the Government exert a direct influence on the appointment (this is known as a Predetermined Composition).

4. The Salient Features of Constitutional Review

4.1. What Constitutional Body carries out Constitutional Review?

In examining the two conventional models of constitutional review, i.e. the US model and the Austrian model, we saw that one of the main differences between the two systems is to be found in the body that actually carries out review. In fact, as we know, in the US system all judges have the power to declare a law unconstitutional, not just the Supreme Court. Furthermore, the judges that have this power are all part of the regular or ordinary judiciary system. When constitutional review is carried out in this way it is defined as decentralised (or diffused) review.

If, on the other hand, constitutional review is carried out by an *ad hoc*, "court-like" body (usually called Constitutional Court), as is the case in the Austrian model, then review is defined as centralised (or concentrated). While this dichotomy made sense up until the 1980s, today these two models appear incapable of comprising all the systems of constitutional review that can be found throughout the world, especially after the democratic transitions in Latin America and in Central and Eastern Europe. In particular, many Latin American countries have hybrid systems that combine both centralised and decentralised review.

4.2. When is Review carried out?

Both the US and Austrian models of constitutional review are characterised by the fact that review is carried out after the law under scrutiny has come into effect. In other words, we have so-called *a posteriori* (or repressive) review. If, on the other hand, review is carried out before the law comes into effect, then we will have *a priori* (or preventative) review. What should, however, be underlined is the fact that if one has decentralised constitutional review, as is the case in the United States, then review will always be repressive because it is anchored to an actual controversy among real adversaries, and therefore takes places during regular court proceedings. On the contrary, in a centralised system of constitutional review we may have both repressive and preventative constitutional review; as we will see, this is the case in Italy. Until recently there were also countries that *only* had preventative review. This was the peculiarity of France, which has a system of constitutional review based neither on the US nor the Kelsenian model. There are historical reasons for this that can be defined as the so-called “French deviation”, to use the term coined by John Merryman. After the French Revolution of 1789, the aim of many influential theorists of the time was to make law “judge-proof”. In other words, judges had to be the “*bouche de la loi*” and merely apply the law. This was a way of upholding a fundamental principle developed by Charles-Louis de Secondat, Baron de La Brède et de Montesquieu, or quite simply... Montesquieu, i.e. the separation of powers (or *trias politica*, as he defined it). In particular, the judiciary power had to be limited so that it did not interfere with the legislative powers exercised by the National Assembly, the expression of popular will. As a result, the idea that regular judges or even an *ad hoc* Court could have the power to strike down legislation was considered utterly unacceptable.

There was, however, an unsurmountable contradiction in this way of reasoning: the separation of powers and the protection of rights are contained in the Constitution, therefore one has to ask the Kelsenian question “Who is the Guardian of the Constitution?”. The Constitutions of 1799 and 1852 gave the Senate the power to carry out preventative constitutional review, i.e. political review. It was only with the Constitution of the Fourth Republic in 1946 that France finally set up an *ad hoc* body, the *Comité constitutionnel*, for constitutional review. However, its jurisdiction was very limited, and it only carried out preventative review. Under the Constitution of the Fifth Republic, France has a *Conseil constitutionnel*, which until the reform of 2008 (see below) only carried out preventative review. The *Conseil constitutionnel* uses the Preamble — and therefore the Declaration of the Rights of Man and the Citizen of 1789 and the Preamble of the 1946

Constitution, which are both mentioned therein — as a parameter (*bloc de constitutionnalité*) for constitutional review (following a judgment taken in 1971). Moreover, the introduction in 1974 of the so-called *saisine parlementaire*, i.e. a constitutional petition that can be lodged by a parliamentary minority, has undoubtedly changed French Constitutional Law and in particular the role played by this body.

What about France today? Well, a peculiar form of *a posteriori* constitutional review was introduced with the constitutional reform of 23rd July 2008 (which came into force on 1st March 2010, *loi organique* n. 2009-1523), through which Articles 61 and 62 of the 1958 French Constitution have been amended.

In particular, the mentioned reform has introduced the so-called *question prioritaire de constitutionnalité* (QPC), which is defined as “an application for a preliminary ruling on the conformity of a legislative provision with the Constitution”. The QPC is *prioritaire* in the sense that it retains “priority” over any other form of review, in line with the paramount role of the Constitution as the top legal source in the French legal order. It is thus possible to affirm that the QPC puts an end to the “French deviation” in so far as it defines an *ex post*, concrete model of constitutional review, which is additional to the traditional *ex ante*, abstract model, as it rules on the constitutionality of a statute as it is applied, and not as it could or should be applied. In the words of M. Olivier Dutheil de La Mothe, honorary member of the *Conseil constitutionnel*, “abstract review brings us back to Aldous Huxley: “Brave new world”, concrete review brings us back to Balzac: “Les Illusions perdues””.

Notably, QPCs can only be raised whenever the parties fear that the legal provision applicable to the case at hand may violate the fundamental rights and liberties enshrined in the Constitution. Moreover, the constitutional claim can be raised by a supreme judge (the *Conseil d'Etat* or the *Cour de Cassation*) only. The claim is to be considered relevant for the *Conseil* if three paramount conditions are met. The first two conditions concern the provision the constitutional compatibility of which is at stake: (1) is it *concretely* applicable to the dispute? (2) Has the *Conseil constitutionnel* already decided on its compatibility with the Constitution? Finally, the third condition concerns the structure of the constitutional pledge: (3) is it a pledge characterised by an innovative and serious nature?

The *Conseil constitutionnel* has three months to provide a decision on the constitutional question: the provision at hand can either be deemed irrelevant (*décision de non-lieu à statuer*), or relevant for the purposes of constitutional review. Accordingly, the *Conseil* can decide for the conditional or unconditional compatibility of the relevant provision with the Constitu-

tion (*décision de conformité sans réserve* or *décision de conformité sous réserve*) or for its non-compliance with the Constitution (*décision de non-conformité*), thus determining its abrogation.

4.3. How can a Constitutional Petition be lodged with a Constitutional or Supreme Court?

Depending on the proceeding that is followed to file a claim in a Constitutional or Supreme Court, one can distinguish between *principaliter* and *incidenter* proceedings. We will have *principaliter* proceedings if the claim can be lodged independently from a specific case. In other words, the question of unconstitutionality is not anchored to a specific case or controversy and therefore the review carried out by the Constitutional Court is abstract. Depending on the country taken into consideration with regard to *principaliter* proceedings, the *locus standi* (i.e. the entitlement) to challenge the constitutionality of laws will vary. The claim may be filed directly in the Constitutional Court by different constitutional bodies or branches of government (the President of the Republic, Parliament, Members of Parliament), or by regional or local government authorities. Just as a matter of curiosity, in Brazil, for example, an action can be brought before the Court by the Bar Association, the confederation of trade unions or a professional association of a nationwide nature. (see Art. 103, Brazilian Constitution). Moreover, in many countries, individual citizens (or a group of citizens) can lodge a claim directly with the Constitutional Court when a statute violates one of their constitutional rights. This is the case in Germany — with the so-called *Verfassungsbeschwerde* — and in Spain and many countries of Latin America — with the *recurso de amparo*.

On the contrary, we will have *incidenter* proceedings when the question of unconstitutionality is raised during a regular court case. Regardless of whether the issue of unconstitutionality is then referred to the Constitutional Court or decided by the sitting judge, constitutional review will be concrete because the law under scrutiny has to be applied in the specific case or controversy.

4.4. What Types of Decision can be Taken?

Bearing in mind that one may have a combination of more than one type of decision, in a comparative perspective the judgments delivered by Constitutional and Supreme Courts can be divided into four main categories: 1) cassation decisions; 2) declaratory decisions; 3) appellate decisions; 4) interpretative decisions.

We will have a cassation decision when the Constitutional or Supreme Court strikes down the statute law under scrutiny by declaring it unconstitutional. Depending on the temporal effects, cassation decisions may imply annulment or abrogation. In the first case, the decision is retrospective and therefore it is as if the unconstitutional statute law never existed. In the second case, the statute law judged to be unconstitutional will cease to have effect from the moment the decision is delivered by the Constitutional or Supreme Court.

When a Constitutional or Supreme Court delivers a declaratory decision, then it merely “declares” that the statute law is unconstitutional, however, in practice, this does not have any concrete legal consequences, i.e. there is no annulment or abrogation. In such cases what usually happens is that the legislature that approved the unconstitutional law will have to remedy the established unconstitutionality within a period determined by the Constitutional or Supreme Court itself.

With appellate decisions, the Constitutional or Supreme Court exhorts or appeals to the Legislature (explicitly or implicitly and with or without a time limit) to make changes to legislation it deems to be in violation of the Constitution. This sort of “judicial activism” can be seen in a restricted sense in countries such as Germany, Austria, and Poland, while it is more intense in countries such as Portugal, Hungary, and Italy. These decisions are sometimes referred to as exhortative or warning decisions.

Finally, one has interpretative decisions when the Constitutional or Supreme Court uses its discretionary powers of interpretation to determine whether a statute is in pursuance of the Constitution. Again, this is the case of Italy, as we will see in par. 6.4.3. What should be noted is the fact that appellate and interpretative decisions influence the relationship between the Constitutional or Supreme Court and the other branches of government. Indeed, appellate decisions are sometimes seen as a form of interference of the Constitutional or Supreme Court with the activities of the Legislature, while interpretative decisions have a significant effect on the relationship between the Constitutional Court and ordinary courts, especially in the context of a centralised model of constitutional review with an *ad hoc* Constitutional Court which stands alongside the ordinary judiciary. With interpretative decisions the Constitutional Court tries to secure with its own interpretation that future implementation of the statute complies with the Constitution.

4.5. What Effects do the Decisions of Constitutional or Supreme Courts have?

It is important to note that the effects of the judgments delivered by Constitutional or Supreme Courts will often differ depending on whether the Court declares the statute law under scrutiny to be unconstitutional or not. Moreover, we must make a further distinction between the subjective and the temporal effects.

The subjective effects are related to the binding nature of the judgment and can be divided into two types: *erga omnes* and *inter partes*. A decision will have an *erga omnes* effect when it is generally binding, while it will have *inter partes* effects when it only binds the parties to the controversy.

The temporal effects are related to the moment in time when the statute law that has been declared unconstitutional ceases to have effect. If the judgment has a so-called *ex tunc* effect, then this implies that it will be binding from the moment the disputed provision took effect. On the contrary, if we have a so-called *ex nunc* effect, then we will have a binding effect only from the moment the decision was taken by the Court. If we consider the cassation decisions examined in par. 4.4., the temporal effects allow us to distinguish between annulment and abrogation.

4.6. Other Functions of Constitutional or Supreme Courts

So far, in a comparative perspective, we have examined Constitutional and Supreme Courts in terms of their exercise of the power to carry out constitutional review, i.e. scrutinise legislation in order to determine whether it is in pursuance of the Constitution. Although this is undoubtedly the most important function that comes under the jurisdiction of Constitutional or Supreme Courts, it is not the only one.

Another function that these courts are often assigned is that of resolving jurisdictional disputes. These may consist of conflicts between branches of government or between the state and regional and/or local government authorities. Constitutional or Supreme Courts may also act as arbiters in disputes between different regional or local authorities or between ordinary courts and other branches of government.

In some countries (notably Germany), they can take decisions concerning political parties. Art. 21.2 of the German Basic Law of 1949 states: "Parties that, by reason of their aims or the behaviour of their adherents, seek to undermine or abolish the free democratic basic order or to endanger the existence of the Federal Republic of Germany shall be unconstitutional. The Federal Constitutional Court shall rule on the question of unconstitutionality".

In various countries, the Constitutional or Supreme Court has the power to decide on the conformity of referendums with the Constitution; furthermore, they are often given jurisdiction on electoral disputes (the *Bush v. Gore* case in the United States being the most famous), the confirmation of elected members and the capacity for office of the President of the Republic or of other State representatives.

Constitutional or Supreme Courts can often exercise the power of impeachment of the Head of State, the Prime Minister or of other ministers or State representatives.

Finally, other functions assigned to Constitutional or Supreme Courts may include decisions concerning: the violation of international treaties, the appointment of the constitutional justices and their immunity, the declaration of martial law, the implementation of decisions taken by international courts, and the amendment of the Constitution. Some Courts even have consultative functions.

5. Composition, Functioning and Jurisdiction of the Italian Constitutional Court

Let us now turn more specifically to Italy. A Constitutional Court was foreseen for the first time in Italy by the Constituent Assembly that was elected on 2nd June 1946, the same day the country chose to become a Republic. The *Corte costituzionale* is regulated by Articles 134 to 137 of the Italian Constitution, which came into effect on 1st January 1948, as well as by Constitutional Laws 1/1948, 1/1953 and 2/1967 and Statute Law 87/1953. It should be noted that the Constitutional Court did not actually start operating until 1956, so for the first eight years constitutional adjudication was carried out by the *Corte di Cassazione*, Italy's Supreme Court. In a comparative context, the model of constitutional review adopted in Italy can be considered centralised as opposed to the decentralised or diffused model adopted in most common law systems, although some authors argue that Italy has a hybrid system of constitutional review because, as we will see (pars. 6.3.1. and 6.3.2.), constitutional review may be carried out by the Constitutional Court based on both *principaliter* and *incidenter* proceedings. Strictly speaking, Italy's Constitutional Court is not part of the judiciary, but is an *ad hoc* body with four specific functions.

In fact, the Constitutional Court has exclusive jurisdiction to decide on: the constitutional review of laws and acts having force of law (legislative decrees and law decrees); jurisdictional disputes between branches of government within the State and jurisdictional disputes over the allocation of

powers between the State and sub-national entities (Regions). Moreover, the Court also delivers judgments concerning accusations against the President of the Republic for the so-called "presidential crimes": high treason and attempting to overthrow the Constitution. Finally, the Court has the power to decide on the admissibility of referendums, as provided by Art. 75 of the Italian Constitution.

As we will see below, two amendments to the Constitution (Constitutional Law 1/1999 and 3/2001) have since modified the *principaliter* proceeding for constitutional review of State and regional laws and introduced a new procedure for the review of the Statutes of the so-called ordinary regions.

The Constitutional Court is composed of 15 judges and a mixed system (see par. 3) is used to select them. In fact, five are appointed by the Parliament in joint session, five by the President of the Republic and five by the Supreme Courts (more precisely three by the *Corte di Cassazione*, one by the *Consiglio di Stato* and one by the *Corte dei Conti*). This ensures that the Court is independent from all other State powers. Judges sit on the Court for nine years and cannot be re-elected (before Constitutional Law 2/1967 the term in office was twelve years). The Chief Justice or President is elected among and by the members of the Court. According to an unwritten convention the Court always elects the most senior judge, so the President has to be elected quite frequently. Candidates are chosen among lawyers with at least twenty years of legal practice, Full Professors of law, and judges, even if retired, of the Supreme Civil, Criminal and Administrative Courts. To be elected by Parliament in joint session, a candidate to the Constitutional Court needs a majority of two thirds in the first three ballots, and three fifths in subsequent ballots. This means that the parliamentary minority has a kind of veto power. This was clearly seen in 2002 when the center-right Government led by Silvio Berlusconi proposed a former minister, Filippo Mancuso, who had previously appealed to the Constitutional Court after being dismissed from the Dini Government (the Court resolved the dispute by deciding in favour of the Government, see par. 7.1.1.). In fact, the centre-left opposition adamantly refused to vote in his favour and – after months of deadlock – Berlusconi was forced to give up and propose a more moderate candidate. It should be noted that, for all judicial decisions taken by the Court, at least eleven judges should be present (for non-judicial decisions only nine are required). Moreover, pursuant to Art. 16.3 of Law 87/1953, each decision of the Court have to be taken by "judges that took part in all the hearings of a specific case". The number of judges who take part in a given proceeding may decrease (due to the fact that a judge terminated his mandate), but single judges cannot be substituted.

6. Constitutional Review in Italy

6.1. Justiciable Acts

According to Art. 134.1 of the Italian Constitution, "The Constitutional Court shall decide on disputes concerning the constitutional legitimacy of laws and acts having the force of law, adopted by the State and the Regions". This provision is not as clear as it might seem, and it has posed various problems from an interpretative standpoint. First, one has to clarify what the term "law" (or rather *legge*) refers to. Does it only include primary legislation or also constitutional amendment laws? The Constitutional Court resolved this issue by stating that constitutional amendment laws can also be the object of constitutional review. As a result, the Constitutional Court can review state and regional statute laws, state — but not regional — acts having force of law (i.e. law decrees and legislative decrees) and constitutional amendment laws. It should also be noted that even legislation that was in force prior to the coming into effect of the Italian Constitution of 1948 can be the object of constitutional review.

On the contrary, secondary sources of law, such as government regulations, cannot come under review. European law and parliamentary standing orders (rules and regulations) are also excluded.

6.2. The parameter of judgment

When one talks about the parameter of judgment reference is made to those provisions the law under review is compared with. Obviously, the provisions of the Constitution and constitutional laws are the first that come to mind when as parameters (*bloc de constitutionnalité* or *bloque de constitucionalidad*) to be used for the sake of constitutional review; however, the Constitution itself indicates other sub-constitutional parameters. For example, legislative decrees have to comply with provisions of the delegation act. Regional laws concerning concurrent subject matters have to respect fundamental principles provided by State framework laws (Art. 117.3). Furthermore, all Italian statute laws must comply with international customary law, with the laws of the European Union, and with the Concordat between Italy and the Holy See. These are all examples of parameters that are "interposed" between the act under scrutiny and the Constitution (so-called *norme interposte*, literally "interposed" rules). In practice, if a legislative decree violates the principles and criteria of guidance contained in the delegation act, then it is indirectly violating Art. 76 It. Const. In much a similar manner, if an Italian statute law is in contrast with a provision of

international customary law, EU law or the Concordat, then there will be an indirect violation of Arts 10.1., 11 or 7.2 It. Const.

6.3. The Proceedings

Two proceedings can be followed to file a claim before the Court: *principaliter* proceedings and *incidenter* proceedings, the latter being the most common of the two. *Principaliter* proceedings refer to claims lodged directly before the Court by the central Government or the Regions. *Incidenter* proceedings, on the contrary, consist of a claim filed by an ordinary court judge and are carried out during a regular trial. Although only the Constitutional Court actually carries out constitutional review (i.e. review is centralised, par. 4.1.), the fact that there are two proceedings for lodging a constitutional claim led some authors, such as Lucio Pegoraro, to talk of a *tertium genus*, i.e. a hybrid model with respect to the US and Austrian models (par. 5). The same can be said about the systems that exist in Germany and Spain, which are very similar to Italy's. This theory is not unfounded; however, it is undoubted that the Italian system of constitutional review is much closer to the Austrian model than it is to the US model. Furthermore, a careful reading of Kelsen's work shows that he did not rule out the possibility of constitutional claims being lodged with the Constitutional Court during a regular court case. Let us begin by describing *incidenter* proceedings.

6.3.1. The Incidenter Proceedings

In *incidenter* proceedings the question of constitutionality is raised "during the course of a court case" (see Art. 1, Const. Law 1/1948). In other words, a court case has to be pending where the disputed provision has to be applied. The question of constitutionality, therefore, represents a procedural incident with respect to the pending court case. In practice, there will be two proceedings: the main proceedings, to which the original controversy is anchored, and the *incidenter* proceedings related to the question of constitutionality. The judge sitting on the ordinary court is known as the judge *a quo*, whereas the Constitutional Court to which the constitutional claim is referred to is known as the judge *ad quem*.

Two requirements need to be satisfied in order for a question of constitutionality to be referred to the Constitutional Court. First, there is a subjective requirement: the body that refers the case to the Constitutional Court must be constitutionally regarded as "judge"; second, a case has to be pending before that "judge", where judicial power is exercised. It has been the case law of the Constitutional Court itself that has clarified these

requirements. Just to mention a few, the following organs have been considered to have the *locus standi* (i.e. to be entitled) to refer a question of constitutionality to the Constitutional Court: the disciplinary benches of the National Bar Association (Judgment 114/1970) and the Superior Council of the Judiciary (Judgment 12/1971); the Appellate Committee of the Italian Patents and Trademarks Office (Judgment 37/1957 and Judgment 236/1996); Tax Commissions (Judgment 287/1974); and, more recently, Arbitration Tribunals (Judgment 376/2001). In exercising one of its other three functions, even the Constitutional Court itself can be a judge *a quo*. This was the case during impeachment procedures (Judgment 125/1977) and when resolving a dispute between branches of government (Judgment 68/1978). The Constitutional Court even raised a question of constitutionality during the selection of the additional members of the Court (i.e. the sixteen extra judges that sit on the Court during impeachment procedures, par. 7.2.).

According to Art. 23 of Law 87/1953, the question of constitutionality may be raised by one of the two parties (including the public prosecutor) or *ex officio* by the judge *a quo*. When doing this the parties or the judge *a quo* must clearly indicate the *thema decidendum*, i.e. the provisions of the law or the act having force of law that are considered to be unconstitutional (the *object* of review) and the provisions of the Constitution or other constitutional laws that are presumed to have been violated (the *parameter* of review). What should be underlined is the fact that the parties *cannot* file their claim directly with the Constitutional Court. In fact, in this stage of the proceeding the judge *a quo* plays an important role: according to Art. 23.4, Law 87/1953 he/she has to verify that two conditions are met before suspending the case and referring the issue to the Constitutional Court: 1) the question of constitutionality is relevant to the case; 2) the question of constitutionality is not clearly unfounded.

The fact that the question has to be relevant to the case is typical of *incidenter* proceedings, in other words, a procedural incident with respect to the case *a quo*. The question will be relevant if the disputed provisions are essential for the judge to deliver a decision in the case at stake. If the case can be decided by the judge *a quo* without applying the disputed provisions, then the question of constitutionality has to be considered irrelevant. This does not imply that the provisions are in pursuance of the Constitution — on the contrary, they may be in gross violation of the latter — however they cannot be the object of an *incidenter* proceeding related to that particular case. The second condition is referred to by some authors to argue that Italy has a hybrid model of constitutional review. In fact, it has been maintained that the judge *a quo* carries out a kind of preliminary review of the provisions, to verify whether the question of unconstitutionality is not clearly unfounded.

If the judge has no doubt whatsoever that the provisions conform with the Constitution, then he will neither suspend the case nor refer the question to the Constitutional Court. If, on the contrary, he has the slightest doubt as to whether the provisions are in pursuance of the Constitution, then this means that the question is not “clearly unfounded” and therefore he is obliged to suspend the case and refer the question of constitutionality to the Constitutional Court.

It is important to point out that if, while the judge *a quo* does carry out a form of preliminary constitutional review — thus giving the Italian system a characteristic that is similar to the US model —, he *does not* have to be convinced that the law is unconstitutional, he merely has to have a *doubt*. Moreover, the judge *a quo* does not have any discretionary power: if he does have a doubt (and the law is relevant, i.e. essential to resolving the case), then he has no choice but to send the claim to the Constitutional Court.

The order with which the judge *a quo* suspends the case and refers the question of constitutionality must contain the judge's reasons for taking this decision and should obviously indicate: *a*) the constitutional provision that is considered to have been violated; *b*) the statute law that is alleged to be unconstitutional; *c*) the reasons why the question is considered relevant; *d*) the reasons why the question is considered not to be clearly unfounded.

6.3.2. *The Principaliter Proceedings*

Principaliter proceeding is regulated by Art. 127 It. Const., which was modified in 2001 when Title V, Part II of the Italian Constitution was amended by the then centre-left majority and confirmed in a constitutional referendum. This proceeding can be used by the State to lodge a claim against a regional law and by the Regions to file a complaint against a state law. Before the amendment of 2001, the State — or, more precisely, the Council of Ministers — could lodge a claim with the Constitutional Court against a regional law *before* this came into effect, while the Regions could only act against a state law *after* it had come into effect. In other words, prior to the reform of 2001, the State had the power to prevent a regional law from coming into force by asking for constitutional review, and obviously the review carried out by the Constitutional Court was preventative (*a priori*) and not repressive (*a posteriori*). Seen from another point of view, the Regions were not on the same standing as the State in terms of asking for constitutional review. In this regard, the most important change resulting from the reform of 2001 was to introduce repressive review for both state and regional legislation. This does not mean that preventative review was eliminated altogether in the Italian system, but we will address this issue later. Accord-

ing to the amended Art. 127 It. Const., the State and the Regions have sixty days following the publication of the regional or state law in the Official Journal to lodge a claim with the Constitutional Court (it should be noted that a Region may also act against a law approved by another Region). With respect to the period prior to the 2001 amendment, the State and the Regions have to follow the same procedure, however, despite this amendment, the State and the Regions are not completely on par in terms of their *locus standi*. The State may take action against a regional law for any violation of the Constitution and does not need a specific interest in order to do so. On the contrary, the Regions can only lodge a claim with the Constitutional Court against a state law if it interferes with their competences. In other words, although to a lesser extent with respect to the period prior to the reform of 2001, the State continues to be in a more favourable position with respect to the Regions. The interpretation that has been given to Art. 127 It. Const. is that the State has a general legislative power despite the fact that, following the constitutional amendment of 2001, the residual legislative power (i.e. related to the subject matters that are not listed in the Constitution) now belongs to the Regions. One must also bear in mind that there is another important provision contained in the Constitution and that is Art. 5, which, while recognising local autonomy, clearly states that the Republic is “one and indivisible”.

6.3.3. *A Third Proceeding? Constitutional Review of the Statutes of the Ordinary Regions*

As illustrated in the previous two paragraphs, both the *incidenter* and the *principaliter* proceedings (after the 2001 amendment) result in repressive (*a posteriori*) review of state or regional legislation, however, in Italy there is still a case where preventative (*a priori*) review is carried out. Following the constitutional amendments of 1999 and 2001, all Ordinary Regions can adopt a statute which determines the form of government and the fundamental principles of the organization and the functioning of the Region, in accordance with the Constitution. These statutes are adopted and amended by the Regional Council with a law that has to be approved twice with a majority of its members and with an interval between the votes of no less than two months. Within thirty days of its publication, the central Government may bring a case concerning the constitutional legitimacy of a regional statute before the Constitutional Court (see Art. 123 It. Const.). At first sight, it would appear that the constitutional review of the Statutes of the Ordinary Regions takes place after the Statute has come into effect, given the fact that the Constitution talks of “within thirty days of its publication”, however, if

one reads the third paragraph of Art. 123 It. Const., one discovers that the publication of the Statute has merely the function of giving notice of its approval, but this does not mean that the Statute has come into effect. In fact, Art. 123.3 It. Const. states that "The statute shall be submitted to a popular referendum when, within three months of its publication, a request is made by one fiftieth of the electors of the Region or by one fifth of the members of the regional Council. The statute submitted to referendum shall not be promulgated unless approved by a majority of valid votes". The procedure that is followed is similar to the one provided for in Art. 138 It. Const. with regard to constitutional amendments that are approved with an absolute majority, but not a majority of two thirds. Again, publication in the Official Journal has the function of simply giving notice of the amendment because, according to Art. 138.2 It. Const., "such laws shall be submitted to popular referendum when, within three months of their publication, a request is made by one fifth of the members of either Chamber or by 500,000 electors or by five regional Councils. The law submitted to referendum shall not be promulgated unless approved by a majority of valid votes". If the Government does take action against a Regional Statute, it will be before it has come in force, therefore review is preventative. Some commentators claim that the amended art. 123 It. Const. has actually assigned the Constitutional Court a fifth function, i.e. constitutional review of Regional Statutes. This theory, however, is unconvincing because Art. 134.1 states that "the Constitutional Court shall decide on disputes concerning the constitutional legitimacy of laws and acts having the force of law, adopted by the State and the Regions" and it appears to be undisputable that the Statutes of Ordinary Regions are "laws... adopted by... the Regions", undoubtedly they are *sui generis* laws — given the procedure that is used to approve them — but still laws.

6.4. The Types of Decision

Decisions of the Constitutional Court can be divided into two main categories: judgments (*sentenze*) and orders (*ordinanze*). With a judgment, the Court makes a final and unappealable decision, thus terminating the proceedings, whereas when it issues an order it takes a procedural decision that does not close the case (however, it should be noted that in some cases the Court may deliver a *sentenza* even when the decision it takes is procedural). In turn, the judgments of the Constitutional Court that decide on the merits of the case can be divided into two types. The Court will deliver a *sentenza di rigetto* when it judges the law or act having force of law *not* to be in violation of the Constitution, in other words, it dismisses the question of

constitutionality, while it will deliver a *sentenza di accoglimento* when it decides that the law is unconstitutional. As we will see in the following paragraphs, the types of judgments that can be delivered by the Constitutional Court are quite diverse and therefore further classifications can be made.

In truth, there is a third type of decision, the decree, which unlike the other two is not taken collegially, but solely by the President of the Constitutional Court and it concerns internal organizational aspects of the Court.

6.4.1. Decisions of Inadmissibility

The Constitutional Court will judge the question of unconstitutionality to be inadmissible when the procedural conditions for the Court to decide the merits of the case are not satisfied. More precisely, the Court will issue an order of inadmissibility if the body that filed the claim did not have *locus standi*. For example, with regard to *incidenter* proceedings, the Court will judge the claim to be inadmissible if it was filed by a body that cannot be defined as a judge (see par. 6.3.1.) or if the question of unconstitutionality was not referred to the Court through a pending court case. Furthermore, the Constitutional Court may overthrow the judge *a quo*'s decision on the relevance of the case. In other words, the Constitutional Court will issue an order (or again, in difficult cases, a judgment) with which it holds that the question of unconstitutionality is inadmissible because the law (or act having force of law) which is the object of the claim is not essential in reaching a decision in the case *a quo*. One will have a similar occurrence with so-called *ius superveniens*, i.e. when the Constitutional Court remits a claim because the law under scrutiny has been repealed. Other decisions of inadmissibility will be taken if the object of the question of constitutionality is an act that cannot be reviewed by the Constitutional Court (e.g. a parliamentary standing order) or if the law contrasts with self-executing European law (in this case the judge *a quo* should simply not apply domestic legislation). The Constitutional Court will also issue an order (or sometimes a judgment) of inadmissibility if the question of constitutionality is clearly unfounded. In this case, if the claim is the result of an *incidenter* proceeding, this decision is rather like the awarding of a "yellow card" to the judge *a quo* who had referred the question to the Constitutional Court even though the question of unconstitutionality did not meet one of the conditions that had to be satisfied. Other cases where the question of unconstitutionality may be considered inadmissible is when the *thema decidendum* is difficult to establish since the challenged provision or the constitutional parameter is not

clearly indicated. Finally, a rather delicate case of inadmissibility is when the Constitutional Court considers the question to be a case of "review of a discretionary power of Parliament". Decisions of this nature can be quite controversial because, in turn, they rely on the discretionary power of the Constitutional Court.

6.4.2. *Judgments of Acceptance and Dismissal*

As outlined above, these are the decisions with which the Constitutional Court accepts the question of constitutionality and declares the challenged provision to be unconstitutional, or it dismisses the claim and rules that the law is not in contrast with the Constitution. What is important to underline is the fact that judgments with which the Constitutional Court dismisses the questions of constitutionality referred to it through an *incidenter* proceeding by a civil, criminal or administrative judge only have *inter partes* effects, i.e. they only bind the parties to the controversy (par. 4.5), while the judgments with which the Constitutional Court declares a law unconstitutional have an *erga omnes* effect.

The decision taken by the Court is a comparative judgment on the basis of which it compares the laws that are presumed to be unconstitutional (i.e. the object, par. 6.1.) with the provisions of the Constitution that are presumed to have been violated (i.e. the parameter par. 6.2.). Furthermore, the decision has to strictly refer to the claim that was lodged. There has to be perfect correspondence between the question of unconstitutionality that was put to the Court and the answer that the latter gives in its judgment: this is known in Italian as the *principio della corrispondenza tra chiesto e pronunciato*. This principle is clearly stated in Art. 27 of Law 87/1953, however, the same provision also provides for an exception to this rule: the Constitutional Court may declare the "consequential unconstitutionality" of other laws that were not contained in the order with which the judge *a quo* referred the question to the Constitutional Court because they become null and void as a consequence of the declaration of unconstitutionality of the law that was explicitly challenged.

6.4.3. *Interpretative Judgments*

A particular type of decision that may be taken by the Constitutional Court is an interpretative judgment, i.e. a decision based on the difference between provision and norm, the provision being the written text of the legislative act and the norm being the meaning given to the provision by the Courts through the exercise of their interpretative powers. One may have

interpretative judgments of acceptance or interpretative judgments of dismissal.

When the Constitutional Court delivers an interpretative judgment of acceptance, it declares the challenged provision unconstitutional just like an ordinary decision of acceptance, but it does so based on a particular process of reasoning. Indeed, the Court explains the fact that different meanings may be given to the challenged provision, i.e. there may be more than one norm. In the case of an interpretative judgment of *acceptance*, the Court may be convinced that one of the norms is *not* unconstitutional, however, it acknowledges the fact that in practice a different meaning is given to the provision, a meaning that gives rise to a norm that is not in pursuance of the Constitution. As a result, the Constitutional Court declares the law to be unconstitutional.

On the contrary, when the Court delivers an interpretative judgment of dismissal, the reasoning is the exact opposite. Just like any other decision of dismissal, the Constitutional Court judges the challenge provision *not* be unconstitutional, but again the reasoning of the Court is based on the meaning that is to be given to it. In this case, the Constitutional Court quashes the challenge because the provision should be interpreted to give rise to Norm A which is in pursuance of the Constitution and not Norm B, contained in the order of referral, which is unconstitutional.

To put it in simpler terms, when the Constitutional Court delivers an interpretative judgment of acceptance it underlines the fact that a meaning may be given to the provision that is in pursuance of the Constitution (Norm A), but it acknowledges the fact that, in practice, the Courts are interpreting the challenged provision in such a way (Norm B) that it violates the Constitution. On the contrary, when the Constitutional Court delivers an interpretative decision of dismissal it judges the interpretation that has been given to the provision by the judge *a quo* (Norm A) unconstitutional, but it underlines that another meaning has to be assigned to it (Norm B), a meaning that is in pursuance of the Constitution.

At this point, however, we should recall the fact that judgments of acceptance and dismissal do not have the same effect (see par. 6.4.2.) and that the application of interpretative judgments of dismissal rely entirely on the fact that all judges follow the interpretation indicated by the Constitutional Court. In fact, given that they are judgments of dismissal, they only have *inter partes* effects. It also must be said that the judiciary has often demonstrated a certain reluctance to do this because they see this as an interference on the part of the Constitutional Court of their interpretative powers (see par. 4.4.). As a result, what often happens is that the Constitutional Court first delivers an interpretative judgment of dismissal, thus

judging the challenged provision not to be unconstitutional. If, however, the meaning (norm) indicated by the Constitutional Court is not subsequently followed by ordinary courts, the Court acknowledges this fact and, as result, when the provision is challenged again, it delivers an interpretative judgment of acceptance and strikes down the law.

6.4.4. *Manipulative Judgments*

Unlike interpretative judgments, manipulative decisions may only be judgments of acceptance. They are called “manipulative” because the Constitutional Court does not simply declare the challenged provision unconstitutional, it also modifies or integrates it in some way. Many constitutional scholars have strongly criticised these decisions because, again, they create problems in terms of the relationship between the Constitutional Court and the ordinary judiciary with regard to the way the provision is interpreted. Many commentators also consider these decisions to be an interference on the part of the Court with the legislative powers of the Parliament. In truth, manipulative judgments have been classified in different ways by various scholars of Italian constitutional law, however, for reasons of brevity we will only refer to three types of manipulative judgment herein: a) judgments of partial acceptance; b) substitutive judgments; c) additive judgments.

6.4.4.1. *Judgments of Partial Acceptance*

With this sort of decision, the Constitutional Court declares a part of the provision and not the entire legislative text unconstitutional. The judgment will read as follows “the Constitutional Court declares the constitutional illegitimacy of the Law X *in the part in which...*”. The Court is often obliged to take these decisions because of the way laws are drafted. If each norm resulted from a single provision (i.e. a single article), then the Constitutional Court would simply deliver a judgment of acceptance that strikes down the whole law. On the contrary, when the law is drafted in a more complex manner, then the Constitutional Court is forced to declare certain parts of the law unconstitutional while leaving others unscathed. The underlying principle is that of avoiding striking down legislation needlessly (*utile per inutile non vitatur*).

6.4.4.2. *Substitutive Judgments*

The “creativity” of the Constitutional Court emerges quite preponderantly when it makes use of substitutive judgments. In this case, the object of the declaration of constitutional illegitimacy is the part of the challenged

provision that gives rise to a certain norm rather than another. Instead of simply striking down the law, the Constitutional Court actually carries out the “substitution” itself. Here the “manipulation” of the text is quite evident, the aim being that of filling a legal vacuum that would be created if the Court simply delivered a judgment of partial acceptance. It is interesting to note that a good example of a substitutive judgment was in a case that concerned consent to prosecution when there has been contempt of the Constitutional Court. With Decision 15/1969, the Constitutional Court declared Art. 313.3 of the Italian Criminal Code unconstitutional because it conferred consent to prosecution to the Minister of Justice. The Constitutional Court considered this provision to be a violation of the independence of the Court, therefore it substituted the provision which provided that it should be the Minister of Justice to give this consent with a provision which gave this power to the Court itself.

6.4.4.3. *Additive Judgments*

The Constitutional Court tries to strike down unconstitutional laws in yet another creative way by *de facto* “legislating” itself. More precisely, the Constitutional Court declares a law to be in violation of the Constitution to the extent that it *lacks* a norm (rule) that is constitutionally necessary, and then it “adds” the missing rule to the statute. A classic example of an additive judgment is Decision 190/1970, according to which the Constitutional Court held that Art. 304 *bis* of the Italian Criminal Procedure Code was unconstitutional to the extent that it did not permit the defence counsel to be present during the interrogation of the defendant. According to the Court, the Code embodied a norm (or rule) that the defence counsel could not be present at key trial events. In practice, the effect of this judgment was to insert a provision permitting the defence counsel to attend pretrial events. In all these cases what the Constitutional Court is judging to be unconstitutional is an omission on the part of the lawmaker. One of Italy’s most eminent constitutionalists, Vezio Crisafulli, described the Court’s self-imposed standard for when it should strike down a legislative omission, thereby supplying a norm that is “missing” from a challenged law: The Court must stay within what Italian constitutionalists call the “*rime obbligate*” or “prescribed verses” of the statute. As William Nardini of Yale Law School aptly put it: “perhaps the metaphor works better in English this way: Judges may not rewrite statutes in free verse. A judge may add only those clauses that the Constitution requires. When the choice among a “variety of solutions” depends on a “discretionary balancing of values,” the Court has held that it may not try to fix the statute” (see Decision 15/1982).

Over time, the Constitutional Court has had to face more complex cases involving laws on State spending programs related to Italy's welfare state. There have been more and more claims of uneven distribution of benefits, i.e. violations of the principle of equality provided for in Art. 3 It. Const. A good example is Decision 240/1994, which extended minimum pension rights to pensioners who had been excluded by the challenged statute law. These decisions tend to place ever-growing strains on the Italian treasury, and many commentators argue that this sort of additive judgment violates Art. 81.4 It. Const., which states that "all other laws implying new or additional expenditures must set forth the means for covering them". Although the Constitutional Court and the majority of constitutionalists reject the notion that Art. 81.4 prohibits the Court from delivering judgments that lead to higher state expenditure, the Court has taken the financial impact of its decisions quite seriously. Moreover, to minimise the economic effects of its decisions, in the 1980s the Court attempted to limit the retroactive effects its decisions in particular cases. These judgments, however, were heavily criticised by commentators, and in recent years the Court has stopped handing down decisions of this sort. What the Constitutional Court has developed in recent years is a new type of additive judgments, which declare provisions unconstitutional because of an omission, but instead of adding the norm (or rule) that is missing - as it would with a conventional additive judgment - it simply indicates the principles that should be followed by Parliament in integrating the statute law. The characteristic of these judgments is the attempt to create a form of collaboration between the Constitutional Court, Parliament, and the judiciary. An example is Decision 243/1993, where the Constitutional Court declared a statute law unconstitutional because it did not foresee a severance payment for public employees. In this judgment, the Constitutional Court established the principle that public as well as private employees are entitled to a severance payment, but it left it up to Parliament to determine the legal mechanisms for payment and therefore the financial impact.

6.4.4. *Exhortative Judgments*

Finally, another rather unusual decision that can be taken by the Constitutional Court are so-called "exhortative" decisions, i.e. judgments in which, faced with norms that can be considered unconstitutional in the abstract, the Court temporarily rejects the challenge (therefore they are technically judgments of dismissal), apparently justifying the exemption of those norms from constitutional review, and at the same time inviting Parliament with a "warning" to change the statute. Sometimes the judgment

is a mere plea to Parliament, in other cases the Constitutional Court indicates to Parliament how the provisions should be integrated and modified. If the lawmaker remains inert, the Constitutional Court may hand down further judgments that turn away challenges to the law, but at a certain point it will strike down the provision, thus deciding the question of unconstitutionality once and for all. A famous case was Decision 225/1974 with which the Constitutional Court provided a set of rules for the reform Italy's public television service. These judgments are basically the same as the appellate judgments mentioned in par. 4.4.

7. The other functions of the Italian Constitutional Court

Although probably the most significant, constitutional review is not the only function that a Constitutional or Supreme Court can exercise, as illustrated in par. 4.6., and, as we have seen, the Italian Constitutional Court is by no means an exception. The other three functions of the Court are illustrated briefly in the paragraphs below.

7.1. *Resolution of jurisdictional disputes*

7.1.1. *Resolution of jurisdictional disputes between branches of government*

Art. 37 of Law 87/1953 states that "conflicts between branches of government shall be resolved by the Constitutional Court provided that the conflict arises between bodies that have the competence to express the final will of the branches of government they belong to" and "whose competences are regulated by the Constitution". One must distinguish between disputes between branches of government (*poteri dello stato*) and disputes between organs *within* that branch of government. The former consist of disputes between constitutional bodies that do not recognise any superior power other than their own (*superiorem non recognoscentes*) and it is for this reason that the Constitutional Court is responsible for their resolution, while the latter are conflicts that have to be resolved by the constitutional body they belong to (for example, disputes between ministers are resolved by the Council of Ministers, disputes between ordinary judges by the Court of Cassation, and so on). In other words, the disputes that are decided by the Constitutional Court must have a "constitutional tone". Another aspect that is important to point out is the fact that the notion of branch of government (*potere dello stato*) does not merely correspond to the exercise of the conventional legislative, executive, and judicial functions, but is more com-

plex. In fact, in the context of the Italian form of government there are constitutional bodies that cannot be allocated to one of the three functions of the triarchy. It is sufficient to think of the President of the Republic, the Constitutional Court, or the Superior Council of the Judiciary. As many commentators have underlined, the three traditional branches of government are not monolithic, and, therefore, internal disputes of jurisdiction may arise.

In any case, it should be underlined that the Italian Constitution does not contain a list of the branches of government that can lodge a claim with the Constitutional Court in the case of a jurisdictional dispute. It is in fact the case law of the Constitutional Court that over time has established which bodies are to be considered a *potere dello stato* and therefore *locus standi*. For example, a minister may raise a dispute against the Government he belongs to; this was the case with the Justice Minister of the Dini Government in 1996. In fact, the then-minister Filippo Mancuso raised a dispute before the Constitutional Court because the President of the Council of Ministers and the President of the Republic had withdrawn his mandate after Mancuso had lost a so-called "individual" vote of no confidence. Mancuso had entered into conflict with the rest of the Government after ordering a series of inspections in the offices of the public prosecutors in Milan where the famous "Tangentopoli" investigations began in 1992. *Locus standi* has also been given to single Members of Parliament and even to Committees promoting an abrogative referendum.

The object of the dispute may be an administrative, judicial, and even, in exceptional cases, legislative act. Moreover, the dispute may arise either because one branch of government is exercising a power that belongs to another branch of government, i.e. one party claims the power exercised by another (*vindicatio potestatis*), or — and this is the more frequent of the two cases — one branch of government challenges the way another branch of government has exercised its power because it has adversely affected the claimant in some way.

In the case of disputes of jurisdiction, the procedure to be followed is divided into two phases. First of all, the Constitutional Court has to decide whether the claim that has been lodged is admissible or not. In other words, the Constitutional Court has to verify whether the dispute has a constitutional tone. Then it shall identify the parties to the dispute. Second, the Constitutional Court will enter into the merits of the case and resolve the dispute. In practice, the Court will declare that function X should be exercised by body Y. Given the fact that the dispute is between parties, the judgment only has *inter partes* effects, therefore another body could always lodge a claim with the Constitutional Court and argue that it should exercise the function in question. A consequence of this conflict resolution is that the

Constitutional Court will declare the annulment of the concrete act that provoked the dispute. This annulment will have an *erga omnes* effect.

7.1.2. Resolution of jurisdictional disputes between the State and the Regions

Art. 37 of Law 87/1953 states that "if a Region approves an act that invades the sphere of competence of the State or of another Region, the State or the interested Region may lodge a claim with the Constitutional Court to decide who the competence belongs to". Apart from statute laws, all acts of the State or the Regions may be the cause of a dispute. Statute laws are of course excluded because, as we saw in par. 6.3.2., the State or the Region can file a claim directly before the Constitutional Court challenging their constitutional legitimacy.

Usually, the object of the conflict is an administrative act, which may even consist of a government regulation. This is noteworthy because, according to art. 134 It. Const., secondary sources of law cannot be the object of constitutional review, but despite this they may come under the scrutiny of the Constitutional Court when the latter is called upon to resolve a jurisdictional dispute (see par. 6.1.).

Jurisdictional disputes between the State and the Regions differ from jurisdictional disputes between branches of government because the parties are predetermined (the State and the Regions). As a result, the procedure is not divided into two parts, given the fact that the Constitutional Court does not deliver a preliminary judgment of admissibility and it therefore begins when the claim is lodged by the State or by the Region. More precisely, the President of the Council of Ministers will file the claim on behalf of the State (following approval by the Council), while the President of the Regional executive will file the claim on behalf of the Region (again after approval by the Regional Executive). The claim has to be lodged with the Constitutional Court within sixty days of the publication (or notification) of the act that caused the dispute.

In a similar manner to the resolution of conflicts between branches of government, the Constitutional Court will resolve the dispute by declaring who the competence belongs to (the State or the Regions) with consequential annulment of the disputed act. Again, due to the fact that the case is between two parties, the judgment will only have *inter partes* effects, while the annulment of the act will have an *erga omnes* effect. It should be underlined, however, that commentators have debated whether the judgment that solves a dispute involving one Region and the State should extend its effects to the other Regions. Roberto Bin and Giovanni Pitruzzella, for example, argue that

if the decision went in favour of the Region, then the other Regions will benefit from the effects of the judgment, i.e. the favourable interpretation of their competences and of course the annulment of the act. On the contrary, if the Constitutional Court decided in favour of the State, then the other Regions will not be affected, otherwise this would be an infringement of their right to defence. The two authors, however, underline the fact that the judgment will be a non-binding but authoritative precedent for future decisions concerning disputes between the State and the Regions.

7.2. *Impeachment of the President of the Republic*

The responsibilities of the President of the Republic and the high crimes he/she can be accused of have already been illustrated in other chapters. Here it suffices to say that, like many other Constitutional or Supreme Courts — such as those of Austria, Slovakia, Slovenia, Chile and South Korea —, the Italian Constitution (Art. 134.3) states that the Italian Constitutional Court shall decide “on accusations raised against the President of the Republic, in accordance with the Constitution”. In brief, what can the President of the Republic be impeached for? According to Art 90.1 It. Const., the President of the Republic shall not be held responsible for acts carried out in the exercise of his duties, save in cases of high treason or attempts to overthrow the Constitution. These are the only two presidential crimes.

The impeachment procedure is divided into two phases. In fact, according to Art. 90.2 It. Const., the first stage of the procedure takes place in Parliament in joint session. The actual investigation to ascertain whether the President should be impeached is carried out by a committee composed of the Immunities Commissions of the Senate and the Chamber of Deputies. This committee has five months to obtain and examine all the evidence related to the *notitia criminis*. The powers of this committee are quite wide given the fact that it can authorise telephone interception, searches, inspections and seizures. At the end of its investigation, the Committee can do one of three things: a) issue an order dismissing the case; b) present a written report proposing impeachment; c) declare its incompetence because the crime is not one of those provided for in Art. 90 It. Const. and transmit the proceedings to the judiciary so that an ordinary criminal procedure can be initiated. If the overall majority of members of Parliament in joint session vote in favour of impeachment, then the proceedings will be transferred to the Constitutional Court, where the second stage of the procedure takes place. Parliament will elect one or more members of the committee to sustain the prosecution before the Constitutional Court and, as a precautionary

measure, the President of the Republic may be suspended from office (temporary impediment).

According to Art. 135.7 It. Const., “when sitting to judge on a case of impeachment against the President of the Republic, the Court shall comprise sixteen additional members, who shall be drawn by lot from a list of citizens elected by Parliament every nine years, from among those possessing the qualifications for election to the Senate, by the same procedures as for the appointment of the ordinary judges of the Court”. The Constitutional Court, in this case composed of thirty-one members, will then decide whether the President of the Republic is guilty of high treason or attempting to overthrow the Constitution. It is worth noting that until the approval of a constitutional amendment in 1989, ministerial crimes were also judged by the Constitutional Court.

7.3. *Judgment of Admissibility of Abrogative Referendums*

A fourth function was assigned to the Court by Const. Law 1/1953. In fact, Art. 2 of this constitutional provision states that the Constitutional Court will decide whether “requests to hold an abrogative referendum, as provided for by Art. 75, It. Const., are admissible”. The procedure for demanding an abrogative referendum is described in Chapter 11, par. 7.4. therefore it suffices to underline that the function of the Constitutional Court is not to verify the validity of the referendum procedure, unlike the Central Office of the Court of Cassation, but to ensure that the referendum request does not violate one of the limits of admissibility contained in Art. 75 It. Const. and in the case law of the Constitutional Court itself.